Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1421
Claimant:	Kimberly Berger
Adjuster:	Alison Sweeney

2024-04-28 - Received first notice of loss by phone from the insured driver. Vehicle involved in a side impact at a signalized intersection. Insured reports the other vehicle entered on a cross street. No police report number yet. Photos requested from insured and tow location confirmed.

2024-04-30 - Claimant identified as the driver of the other vehicle. Claimant has retained counsel, who has asked that all contact go through their office. Liability appears disputed on the signal phase. Scene diagram requested. Reviewing available traffic camera footage from the intersection.

2024-05-09 - Claimant's attorney submitted a demand package including a medical summary. Claimed injruy is a knee injury, with treatment described as physical therapy and an orthopedic consult. Records requested for prior knee complaints. Authorization forms sent to counsel.

2024-05-18 - Vehicle inspcetion completed. Driver-side door and rear quarter panel show deformation consistent with a side impact. Airbag deployment noted in the claimant's vehicle. Estimate pending from the body shop. Subrogation notice prepared for the other carrier.

2024-05-26 - Spoke with defense counsel regarding liability position. Recorded statements reviewed, and the insured's account is consistent with the physical damage pattern. Reserve reviewed and adjusted to reflect the knee injury claim and pending medical records. File flagged for supervisor review before next settlement discussion.

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Bodily Injury Unit

Recorded Statement

Claim number:	C-1421
Statement of:	Kimberly Berger
Taken by:	Alison Sweeney
Date:	2024-05-03

Q: Thank you for taking the time to speak with me today. This recorded statement concerns the collision at the intersection in Baytown, Texas. Do you understand that this call is being recorded?

A: Yes, I understand.

Q: Can you describe where you were coming from and where you were headed when the collision happened?

A: I was driving home from work. I was heading through the intersection on a green light, going straight.

Q: What was the traffic signal showing for you as you approached?

A: It was green. I'm sure of that because I had just looked up at it before I entered the intersection.

Q: Did you see the other vehicle before the impact?

A: Not really. It came from my right side, and I only saw it a split second before it hit my driver's side door.

Q: Was there anything that might have blocked your view, like parked cars or a sign?

A: There was a large delivery truck parked on the corner, so my view to the right was limited until I was almost into the crossing.

Q: After the impact, how did your vehicle move, and did you hit anything else?

A: The car spun partway around and stopped against the curb. I didn't hit anything else.

Q: Were you injured, and if so, where?

A: Yes, my left knee hit the steering column and the dashboard. It's swollen and painful, and I've had trouble bending it and putting weight on it.

Q: Have you received any medical treatment since the collision?

A: I went to the emergency room that same day, and I've been seeing a physical therapist since then.

Q: Is there anything you would like to add to your statement?

A: No, I think I've covered everything. I just want my knee taken care of and my car repaired.

Q: Thank you. This concludes the recorded statement.